

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-12

DOLLAR GENERAL LOGISTICS, LLC

v.

YANG MING MARINE TRANSPORT CORP.

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), Complainant Dollar General Logistics, LLC (“Complainant” or “Dollar General”) and Respondent Yang Ming Marine Transport Corp. (“Respondent” or “Yang Ming”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule:

The Parties have already exchanged the initial disclosures required by 46 C.F.R. § 502.141(b). The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions per party) and 502.145 (i.e., no more than 50 written interrogatories), respectively.

Consistent with Paragraph 31 of the Presiding Officer’s July 9, 2025 Initial Order in this case, the Parties intend to meet and confer concerning a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case.

Pursuant to 46 C.F.R. § 502.64(a), the Parties also held a preliminary conference with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”) via a videoconference on August 7, 2025.

The Parties propose the below schedule, which provides for a discovery schedule in excess

of 150 days. The parties are mindful of the 150-day time period set by 46 C.F.R. § 502.141(g); however, the parties anticipate that documentary discovery will be extensive.

The Parties propose this schedule having already had extensive discussions regarding the collection of electronically stored information from likely relevant custodians and the proposal of possible search terms to identify potentially relevant documents.

Complainant's database of potentially responsive documents contains terabytes of data. It is Complainant's experience that much of this data also exists as compressed electronic files which, once opened and expanded, yield a significantly higher data volume. This volume consists of millions of documents exclusively as it relates to emails and electronic files collected from specific custodians, with significant additional documents and data collected from Complainant's shared document files and other sources. After this initial database has been electronically searched and narrowed, potentially responsive documents based on the Parties' written discovery requests must be manually reviewed for responsiveness, confidentiality, and privilege before they are prepared for production, a task which will take a significant amount of time. The volume of data which must be searched could grow, depending on the list of custodians agreed upon by the parties.

As to Respondent, the initial search for potentially responsive data from likely custodians has returned upwards of .5 Terabyte, which could well exceed that amount by multiples of data and must be electronically searched for responsive documents. Similarly to that of Complainant's data, the same required processes described above of searching and conducting manual review must take place.

The Commission's regulations requiring that discovery be completed within 150 days of the service of a respondent's answer may be a reasonable time in a relatively straightforward case; however, it is not realistic for a case of this magnitude in which documentary discovery involves

millions of documents, depositions of as many as twenty witnesses per party, and damages alleged in excess of \$14.77 million.

The parties acknowledge that prompt resolution of claims and disputes arising under the statutes administered by the Commission is a laudable goal, one which the deadlines for issuance of initial and final decisions are intended to achieve, and that scheduling orders are an important part of this process. However, the parties wish to emphasize that it is not unusual for the deadlines for completion of discovery and/or for the issuance of initial and final decisions to be extended by administrative law judges and the Commission. The same rationale should apply at this initial stage, when a discovery schedule is being established.

There are also policy considerations which favor allowing sufficient time for a full development of the evidentiary record before an agency. *Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002) (policy and responsibility of Commission and, by delegation of authority, presiding judge, to inquire into and consider all relevant facts; of even greater importance than the concept of fairness between the parties, as they maneuver to develop a record which fits their positions, is the need to ensure that justice is served and all relevant facts are considered by the Commission).

The parties believe that good cause has been demonstrated to modify the 150-day deadline provided for under 46 C.F.R. §502.141(g) and accordingly propose the following schedule:

EVENT	PROPOSED DEADLINE
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	September 5, 2025
Parties to serve objections and initial responses to initial RFPs	September 25, 2025
Parties to serve objections and initial responses to initial interrogatories	October 10, 2025
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	November 14, 2025
Substantial completion of productions of documents and ESI in response to initial RFPs	January 2, 2026
Parties to File Joint Status Report	January 29, 2026
Complete depositions of fact witnesses	March 18, 2026
Last day to serve interrogatories, requests for admission, and RFPs	March 18, 2026
Disclosure of initial expert reports, if any	April 24, 2026
Disclosure of rebuttal expert reports, if any	May 29, 2026
Complete expert depositions	June 26, 2026
Close of discovery	June 26, 2026
Complainant’s initial brief, proposed findings of fact, and appendix	August 7, 2026
Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	September 18, 2026
Complainant’s reply and responses to proposed findings of fact	October 9, 2026

Given the considerable amount of work that is required in this case, the parties propose to file a status report with the Presiding Officer on January 29, 2026 to report on the status of discovery.

Dated: August 8, 2025

Respectfully submitted,

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